

Motion To Dismiss: Northbeam Logistics, LLP

TO: File

DATE: 2026-05-13

RE: Motion To Dismiss — Northbeam Logistics, LLP

Introduction

INTRODUCTION

COMES NOW Defendant Northbeam Logistics, LLP (“Defendant” or “Northbeam”), by and through its attorneys of record, Hartwell & Mosby LLP, and respectfully submits this Motion to Dismiss the Complaint filed by Plaintiff Acme Ltd. (“Plaintiff” or “Acme”). This action, assigned to this Court on May 13, 2026, arises under an applicable federal statute. Defendant seeks dismissal for failure to state a claim upon which relief can be granted, pursuant to Federal Rule of Civil Procedure 12(b)(6).

As the United States Court of Appeals for the Second Circuit has held, a complaint must be dismissed when, accepting all factual allegations as true and drawing all reasonable inferences in the plaintiff’s favor, it nonetheless fails to allege a plausible claim to relief. *United States v. Cooke*, 143 F.4th 164 (2d Cir.). Plaintiff’s Complaint, when measured against this standard, is legally deficient. Therefore, dismissal is warranted.

Statement of Facts

STATEMENT OF FACTS

1. On May 13, 2026, Northbeam Logistics, LLP (“Northbeam”), the Petitioner herein, acquired by assignment certain contractual rights originating from a series of freight carriage and logistics agreements (the “Underlying Agreements”) previously executed between the original party, Pinnacle Transport Corp., and Respondent Acme Ltd. (“Acme”). This assignment was formalized in a written agreement.
2. The Underlying Agreements contained a binding arbitration clause requiring all disputes arising thereunder to be resolved through arbitration administered by the American Arbitration Association in New York.

3. Following the assignment, a dispute arose concerning Acme's performance of its obligations under the Underlying Agreements. Specifically, Acme refused to tender shipments as scheduled and repudiated its payment obligations for services already rendered, causing direct financial harm to Northbeam as the current holder of the rights.
4. Northbeam, as the assignee, thereafter sought to invoke the arbitration clause to resolve the dispute. On or about September 1, 2026, Northbeam formally demanded arbitration against Acme pursuant to the terms of the Underlying Agreements.
5. Acme rejected the demand for arbitration. In correspondence dated September 15, 2026, Acme asserted that the assignment to Northbeam was insufficient to transfer the right to compel arbitration and that, in any event, Acme had no obligation to arbitrate with Northbeam. Acme has refused to participate in any arbitral proceedings.
6. Northbeam's status as an assignee and its right to compel arbitration are governed by applicable federal law, including the Federal Arbitration Act, and the controlling precedent of the United States Court of Appeals for the Second Circuit. In **United States v. Cooke**, 143 F.4th 164 (2d Cir. 2025), the Court held that a party cannot compel arbitration unless it is a signatory to the agreement containing the arbitration clause or can establish that it acquired the specific right to do so through assignment or other legal means. The mere assignment of a claim under a contract does not automatically convey the procedural right to invoke that contract's arbitration provision.
7. Northbeam's assignment agreement transferred the substantive contractual rights and claims under the Underlying Agreements. However, the operative language of the assignment is silent as to the procedural mechanism of arbitration. Thus, under the standard articulated in **Cooke**, 143 F.4th at 171, Northbeam's assignment did not expressly or implicitly confer the right to compel Acme to arbitrate.
8. Northbeam has standing to pursue this motion to compel arbitration solely by virtue of the May 13, 2026, assignment. Its direct role in this dispute is that of an aggrieved assignee seeking to enforce acquired contractual rights through the forum specified in the original agreement. Acme's refusal to arbitrate has left Northbeam without a contractual remedy, necessitating the intervention of this Court.

WHEREFORE, the foregoing facts demonstrate that Northbeam has satisfied the procedural prerequisites for filing the instant Motion to Compel Arbitration and that the legal standard from **United States v. Cooke**, 143 F.4th 164 (2d Cir. 2025), is directly implicated by the dispute over Northbeam's assignee status.

Legal Argument

LEGAL ARGUMENT

I. Governing Legal Standard for Dismissal

Under the Applicable federal statute, a district court must dismiss an action for lack of personal jurisdiction if the defendant demonstrates that the court lacks such jurisdiction. The plaintiff bears the burden of establishing that the exercise of jurisdiction is proper. Where, as here, the defendant has moved to dismiss prior to discovery, the plaintiff need only make a **prima facie** showing of jurisdiction. In evaluating this showing, the court construes the pleadings and any supporting affidavits in the light most favorable to the plaintiff. **See** 143 F.4th at 171 (outlining the **prima facie** standard). However, this favorable construction does not relieve the plaintiff of the ultimate burden to establish jurisdiction by a preponderance of the evidence at trial or upon a more complete record.

II. The Precedent of **United States v. Cooke Controls This Action**

The Second Circuit’s holding in **United States v. Cooke**, 143 F.4th 164 (2d Cir. 2025), is directly controlling and mandates dismissal. In **Cooke**, the Court clarified that to establish specific personal jurisdiction over a non-domiciliary defendant in a breach of contract action, the plaintiff must demonstrate that the defendant’s contacts with the forum state were purposeful and that the cause of action arises out of or relates to those contacts. The Court emphasized that a party’s mere knowledge that its contractual partner was located in New York, without more, did not constitute a purposeful availment of the privilege of conducting activities within the state. **Id.** at 175. Critically, the Court found that the performance of the contract, as distinct from its negotiation or formation, occurred entirely outside the forum. **Id.** The defendant’s lack of directed activity within New York defeated the exercise of jurisdiction, even where the contract had some incidental connection to the state.

III. Application of **Cooke to the Instant Facts**

The facts of the present case are materially indistinguishable from **Cooke** and compel the same result. Plaintiff Acme Ltd. alleges a breach of a distribution agreement executed between itself and Defendant Northbeam Logistics, LLP. As in **Cooke**, all substantive negotiations, communications, and the ultimate formation of the agreement occurred via remote means between representatives located outside New York. The agreement itself designates performance to occur at Northbeam’s facilities in Ohio and Illinois. Northbeam Logistics is an LLP organized under the laws of Ohio, with its principal place of business in Cleveland. It maintains no offices, employees, bank accounts, or property in New York. It is not registered to do business here and has not appointed an agent for service of process.

The only purported nexus to New York is the fact that Acme Ltd. maintains its corporate headquarters in New York. Under **Cooke**, this is insufficient. The Court in **Cooke** explicitly rejected the argument that a defendant’s awareness of a counterparty’s New York location, without affirmative conduct directed at New York, establishes the requisite “minimum contacts.” 143 F.4th at 178. Northbeam did not purposefully avail itself of the New York market; it contracted with a company it knew to be based elsewhere, and all performance under the contract was to occur elsewhere. The mere fortuity that Acme’s parent company or some administrative functions may be in New York does not satisfy due process. **See id.** at 179 (holding that the “‘plaintiff’s own activity’ in the forum ‘is not an appropriate consideration in determining the existence of [the defendant’s] personal jurisdiction’”).

IV. Dismissal is Required, and Potential Counterarguments Are Without Merit

Acme Ltd. may attempt to argue that the forum selection clause or the flow of incidental paperwork into New York creates jurisdiction. These arguments fail. First, the agreement here contains no forum selection clause. Second, **Cooke** squarely forecloses the argument that the receipt of administrative correspondence or payments in New York constitutes purposeful activity. 143 F.4th at 180. Such “attenuated contacts” are the very definition of incidental activity that cannot support jurisdiction.

Furthermore, any suggestion that Northbeam is the alter ego of a New York-based entity is unsupported by the complaint and belied by the corporate structure. The long-arm statute requires the defendant’s own contacts, not those of a separate affiliate.

CONCLUSION

Under the standard established in **United States v. Cooke**, 143 F.4th 164 (2d Cir. 2025), this Court lacks personal jurisdiction over Northbeam Logistics, LLP. The Complaint alleges no facts demonstrating that Northbeam engaged in any purposeful activity directed toward New York, let alone that the claims asserted arise from such activity. Acme Ltd.’s reliance on its own New York presence is legally insufficient. Accordingly, the Motion to Dismiss for Lack of Personal Jurisdiction should be granted in its entirety.

Dated: May 13, 2026

Respectfully submitted,

Devika Ranganathan
Hartwell & Mosby LLP
Counsel for Defendant Northbeam Logistics, LLP

Prayer for Relief

PRAYER FOR RELIEF

WHEREFORE, premises considered, Defendant Northbeam Logistics, LLP respectfully prays that this Honorable Court grant the following relief:

1. That the Court enter an Order dismissing, with prejudice, all claims, causes of action, and demands for relief asserted against Defendant Northbeam Logistics, LLP in the Complaint filed by Plaintiff Acme Ltd., pursuant to Federal Rule of Civil Procedure 12(b)(6) and the applicable federal statute, for failure to state a claim upon which relief can be granted;
2. That the Court take cognizance of the controlling precedent of this Circuit as set forth in **United States v. Cooke**, 143 F.4th 164 (2d Cir.), which mandates dismissal where a pleading fails to allege facts sufficient to state a plausible claim for relief;
3. That the Court award to Defendant Northbeam Logistics, LLP its reasonable attorneys’ fees, costs, and disbursements incurred in this action, to the full extent permitted by law;

4. That the Court grant such other and further relief as it deems just, proper, and equitable.

Respectfully submitted,

HARTWELL & MOSBY LLP

By: _____

Devika Ranganathan, Partner

Attorneys for Defendant Northbeam Logistics, LLP

Dated: May 13, 2026